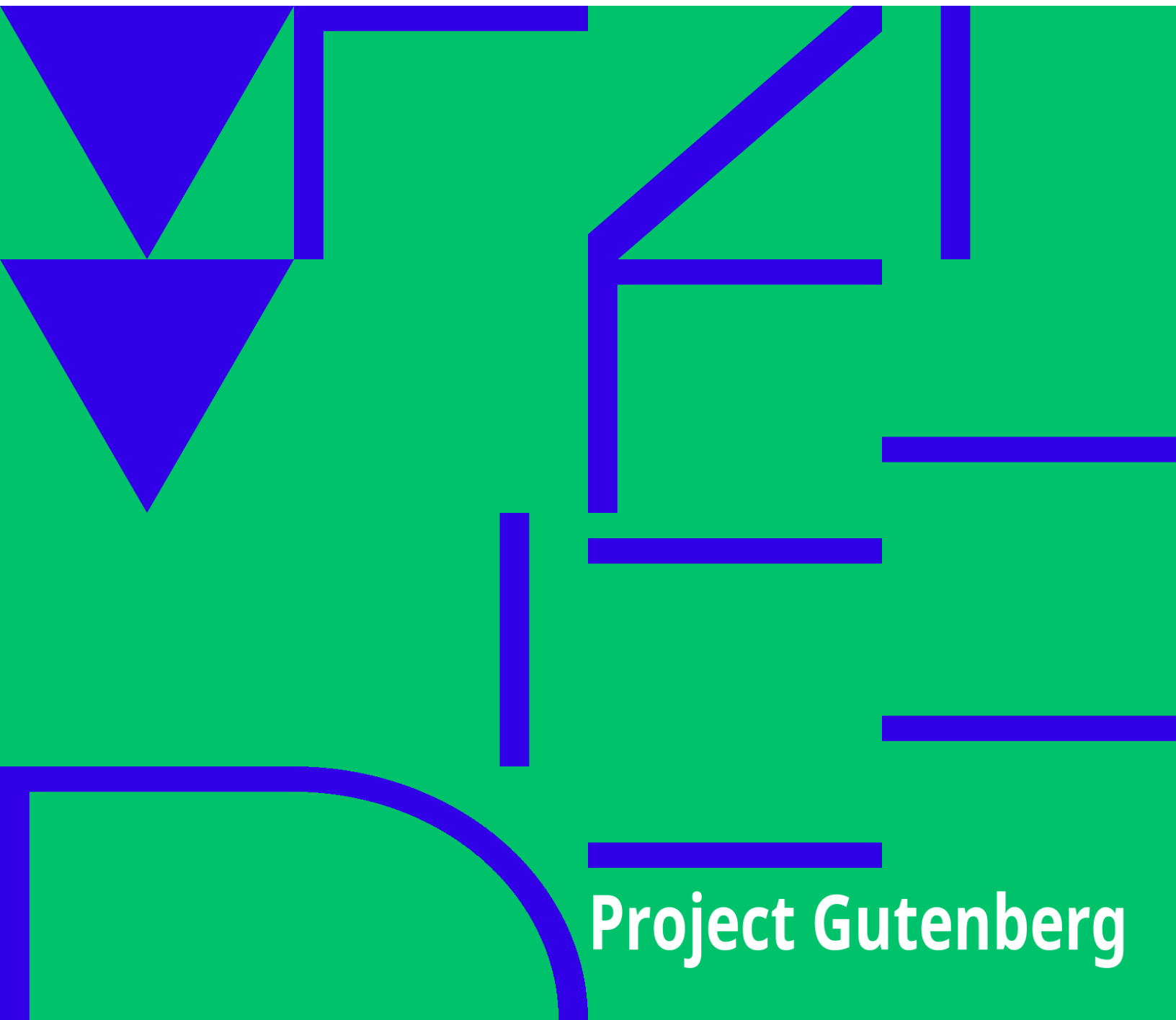


Songs of Heroic Days

Thomas O'Hagan



Project Gutenberg

Songs of Heroic Days

Thomas O'Hagan

An abstract geometric design featuring a large green rectangle. Overlaid on this are several blue shapes: two downward-pointing triangles on the left, and various horizontal, vertical, and diagonal lines and segments of varying lengths scattered across the right and bottom portions of the green area. A thick blue curved line is visible in the bottom left corner.

Project Gutenberg

The Project Gutenberg eBook of Songs of Heroic Days

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Songs of Heroic Days

Author: Thomas O'Hagan

Release date: August 21, 2011 [eBook #37154]

Most recently updated: January 8, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/37154

Credits: Produced by Al Haines

*** START OF THE PROJECT GUTENBERG EBOOK SONGS OF
HEROIC DAYS ***

SONGS OF HEROIC DAYS

By
THOMAS O'HAGAN

Author of
A Gate of Flowers
In Dreamland
Songs of the Settlement
In the Heart of the Meadow
and Others

Toronto:
WILLIAM BRIGGS
1916

Copyright, Canada, 1916
by Thomas O'Hagan

TO THE BRAVE CANADIAN HEARTS
THAT BEAT AND BATTLE FOR THE
CAUSE OF FREEDOM AND THE SAFETY
OF THE EMPIRE.

PREFACE

Nearly all these Poems have appeared during the past year in the columns of the *Globe* and the *Mail* and *Empire* of Toronto, and the *Free Press* of Detroit, Michigan.

When the Author read from his poems last winter before the Women's Press Club of Toronto one of its members suggested that an engrossed and illuminated copy of the poem, "I Take Off My Hat to Albert," be presented to His Majesty, King Albert of Belgium. This was done through the kind offices and courtesy of Mr. Goor, the Belgian Consul-General at Ottawa.

His Majesty's gracious letter of acceptance, which the reader will find on another page, is indeed a Royal Foreword to these poetic blossoms of a piteous though heroic time.

THOMAS O'HAGAN
January 20th, 1916.

Contents

[Letter From the King of Belgium](#)
[Translation](#)
[I Take Off My Hat to Albert](#)
[The Kaiser's Favorite Poems](#)
[Louvain](#)
[The Kaiser's Bhoys](#)
[Mothers](#)
[In the Trenches](#)
[The Christ-Child](#)
[God's New Year's Gift](#)

[Trouble in the Louvre](#)
["Bobs" of Kandahar](#)
[Song of the Zeppelin](#)
["Sock it to 'Em"](#)
[Langemarck](#)
[The Bugle Call](#)
[His Mission](#)
[Achilles' Tomb](#)
[The Chrism of Kings](#)
[Tipperary](#)
[Gather the Harvest](#)
[The Kaiser's "Place in the Sun"](#)

LETTER FROM THE KING OF BELGIUM

LETTER FROM THE KING OF BELGIUM

La Haye, le 11 Août 1875



*Secretariat
du Roi & de la Reine* *Monsieur le Docteur,*

*J'ai avec eu, pour exprimer
votre sympathie au Roi, des paroles
d'une touchante délicatesse, aux-
quelles La Reine a été très sensible.*

*Le Souverain, qui a beaucoup
remarqué la jolie enluminure dont
vous avez orné les Éphémérides composées
en Son honneur, me charge de vous
remercier vivement et de vous dire
qu'il sera heureux de conserver ce
précieux souvenir*

*Recevez, je vous prie, Monsieur le
Docteur, l'assurance de ma conside-
ration distinguée*

Le Duc d'Alençon,

J. J. J. J. J.

*A Monsieur le Docteur
Thomas O'Hagan
Ottawa.*

Letter from the King of Belgium

TRANSLATION

LA PANNE, August 11th, 1915.

OFFICE OF THE SECRETARY TO THE KING AND
QUEEN (OF BELGIUM).

SIR:

The very delicate words you have found to express to the King your friendly feelings have greatly touched His Majesty.

The Sovereign, Who has much admired the beautiful illumination adorning the verses composed in His honor, commands me to thank you sincerely and to say that He will be glad to keep this valuable souvenir.

I have the honor to be

Sir

Your obedient Servant,

J. INGENBLEEK,

Secretary.

To DR. THOMAS O'HAGAN,
Ottawa.

I TAKE OFF MY HAT TO ALBERT

*Albert, King of Belgium, is the hero of the hour;
He's the greatest king in Europe, he's a royal arch and tower;
He is bigger in the trenches than the Kaiser on his Throne,
And the whole world loves him for the sorrows he has known:
So I take off my hat to Albert.*

*Defiance was his answer to the Teuton at his gate,
Then he buckled on his armor and pledged his soul to fate;
He stood between his people and the biggest Essen gun,
For he feared not shot nor shrapnel as his little army won:
So I take off my hat to Albert.*

*King of Belgium, Duke of Brabant, Count of Flanders, all in one;
Little Kingdom of the Belgae starr'd with honor in the sun!
You have won a place in history, of your deeds the world will sing,
But the glory of your nation is your dust-stained, fearless King:
So I take off my hat to Albert.*

For M. Goor.

THE KAISER'S FAVORITE POEMS

What are the Kaiser's favorite poems?

Well, now, you tax me hard:
I know the Kaiser's favorite drink
But do not know his bard;
I'm sure it is not Schiller
Who reigns in German homes.
Nor yet Olympian Goethe,
Who writes the Kaiser's poems.

Perhaps that Heinrich Heine
Has touched the Kaiser's soul;
Or Arndt with his trumpet call
Like a new conscription roll;
Or, Walther von der Vogelweide
With his nest in mythic domes,
Is the author and creator
Of the Kaiser's favorite poems.

If I saw the Kaiser's library
I'd know well what he reads—
The color of his fancy
And the prompter of his deeds:
I'd learn the depth and wisdom
Of his theories and his gnomes,
If I got but just a glance or two
At the Kaiser's favorite poems.

Then let us go to Essen,
Where the Kaiser's books are bound;
They are full of "steel" engravings—
All "best sellers" there are found;
For the Prussian soul and spirit
Speaks in rhythm thro' those tomes,
And these without a question,
Are the Kaiser's favorite poems.

For Rt. Hon. David Lloyd-George.

LOUVAIN

A shrine, where saints and scholars met
And held aloft the torch of truth,
Lies smouldering 'neath fair Brabant's skies,
A ruined heap—war's prize in sooth!
The Pilates of Teutonic blood
That fired the brand and flung the bomb
Now wash their hands of evil deed,
While all the world stands ghast and dumb.

Is this your culture, sons of Kant,
And ye who kneel 'round Goethe's throne?

To carry in your knapsacks death?
To feel for man nor ruth nor moan?
What 'vails it now your mighty guns
If God be mightier in the sky?
What 'vail your cities, walls and towers
If half your progress be a lie?

The smoking altars, ruined arch
Of ancient church and Gothic fane
Have felt the death stings of your shells,
And speak in pity thro' Louvain.
Wheel back your guns, your howitzers melt,
Forget your "World-Power's" cursed plan
And sign in peace and not in blood
Dread Sinai's pact 'twixt God and Man.

For His Eminence Cardinal Merrier.

THE KAISER'S BHOYS

O, the Kaiser's bhoys are marching, "nach Paris" they are going,
But they've sthopped to rest a minit at the Marne and at the Meuse;
And the Gordons and the Ministers are thryin' to entertain them,
For they've every kind of "record" that the Teutons want to choose;
They have battle cries that sounded for centuries in the Highlands,
They have war cries fierce and stirring as the breath of Munster
gales;
They are shoutin' to the heavens, and they're shoutin' to the Kaiser,
"Faugh-a-ballagh!" sons of Odin, or we'll tie you up like bales.

O, the Kaiser's bhoys are dramin' of a naval base at Calais,
But they wakin' ivery mornin' full of sorrow and of gloom;
For the little Belgian sojers cut the dykes and flood their trenches,

And they find their dugouts only jist a bathtub or a tomb.
But they're makin' progress backward, "*nach Berlin*" they are going,
With their "*Landsturms*" and their "*Land-wehrs*,"
 keepin' sthep in dim grey line;
And they'll know far more of Britain and her brood of lions snarlin',
When they find themselves "*su Hause*" jist beyant
 "*Die Wacht am Rhein*."

For John E. Redmond, M.P.

MOTHERS

Through the vigils deep of the sable night
 A mother sits in grief alone,
For her sons have gone to the battle front
 And left on the hearth a crushing stone.
Beyond the stars that burn at night
 She sees God's arm in pity reach;
It counsels patience, love and faith,
 Heroic hearts and souls to teach.

The blue is spann'd and the tide goes out.
 And the stars rain down a kindlier cheer;
And the mother turns from this throne of grief
 To pierce the years with a joyous tear;
For duty born of a mother's heart
 Fills all the rounds of our common day—
Yea, sheds its joy in the darkest night,
 And fills with light each hidden way.

For Miss Ina Coolbrith.

IN THE TRENCHES

All day the guns belched fire and death
And filled the hours with gloom;
The fateful music smote the sky
In tremulous bars of doom;
But as the evening stars came forth
A truce to death and strife,
There rose from hearts of patriot love
A tender song of life.

A song of home and fireside
Swelled on the evening air,
And men forgot their battle line,
Its carnage and dark care;
The soldier dropp'd his rifle
And joined the choral song,
As high above the tide of war
It swept and pulsed along.

That night while sleeping where the stars
Look down upon the Meuse,
Where Teuton valor coped with Frank,
Where rained most deadly dews,
A soldier youth, in khaki clad,
Rock'd where the maples grow,
Smiled in his dream and saw again
The blue St. Lawrence flow.

For Miss Julia O'Sullivan.

THE CHRIST-CHILD

Across the waste, across the snow,
O the pity! O the pity!
Past sentinel of friend and foe
O the pity! O the pity!
Comes the Christ-Child clad in white
Through the storm-clouds of the night.
Bearing in His lily hands
Gift of peace to warring lands,
O the pity! O the pity!

"*Adeste fideles!*" sing the choirs
O the pity! O the pity!
Lurid flame the battle fires
O the pity! O the pity!
Shepherds hear the heavenly song,
Mid the strife and piteous wrong;
Peace on earth but not of men,
Peace that knows not crime nor sin.
O the pity! O the pity!

Lay your sceptres at His feet,
O the pity! O the pity!
Christ, the Babe of Bethlehem, greet,
O the pity! O the pity!
Legions stretched in battle line,
Saw the star and knew the sign,
Yet forgot that Christ was born
Prince of Peace, on Christmas morn,
O the pity! O the pity!

Christmas, 1914.

For Mrs. George McIntyre.

GOD'S NEW YEAR'S GIFT

What shall the coming year bring forth,
O Lord, who rulest the land?
For the navies of the sea and air
Are but stubble in Thy hand.
The battalions in the field go forth;
They arm in mighty line;
Do they kneel to know Thy holy will?
Have they asked from Thee a sign?

The kings invoke Thy holy name,
In their carnage and their strife;
But the purple gift it was Thine to give
Recks not of pity nor life:
For they're drunk with the wine of lustful power,
And seared with the sins of earth;
And their prayers and preachments now mock Thy name,
And make of Thy laws but mirth.

January 1, 1916.

For Duncan Campbell Scott.

TROUBLE IN THE LOUVRE

When the German troops were marching with the Uhlans far ahead,
The objective point being Paris, as the Berlin wireless said,
There was trouble in the Louvre, 'mong the paintings on the walls,
There were shoutings 'cross the centuries, there were
loud artistic calls;

"Mona Lisa" ceased her smiling and "The Banker and His Wife"
Turned to Millet's "Women Gleaning"—begged protection
for their life;

While "The Gypsy Girl" of Franz Hals, fearful of impending fate,
Roused "The Shepherds in Arcadia" with "The Hun is at the Gate!"

Then the panic spread on all sides till the battle of the Marne
Solved all danger of the looting, removed all need to warn;
Straight "The Lace Maker" from Flemish Bruges in the joyous
choral led

Smiled at "Charles First of England" who had lost his crown and
head;

For fear had left the Louvre when the Teutons turned in flight,
So they scanned the sky no longer for dread Zeppelins in the night.
And the paintings born of centuries touched by genius into life
Still are hanging in the Louvre 'mid war's clash and clang and strife.

For Edgar Guest.

"BOBS" OF KANDAHAR

"The body of 'Bobs' then lay in state until five o'clock,
when it was interred in a crypt near-by those containing the
bodies of Nelson and Wellington."—*Press Despatch.*

Who is he that cometh to join our mighty dead?
Is it "Bobs" of Kandahar the Empire's armies led?
Give him place, O Nation great! within your storied walls;
Within our heart his name shall rest, his ashes in St. Paul's.
Soldier of the Empire, Bobs of Kandahar!
Lay him near the hero of glorious Trafalgar!

Death has ta'en the shining sword he aye in duty drew;
Lay him near the Iron Duke of fateful Waterloo!

Soldier of the Empire, well thy work was done,
Fit thy sun had setting within sound and roar of gun;
Thy soul had vision of the years fraught with danger's woe,
And counsell'd arméd wisdom against a subtle foe;
Now thy task has ended, the splendor of thy sun,
Sheds its setting glory on the greater life begun,
From where the Maple stands in pride to India's torrid star,
Now, mourn an Empire's people for "Bobs" of Kandahar!

For Lady Aileen Mary Roberts.

SONG OF THE ZEPPELIN

I cleave the air through the murky night,
High o'er the forests and sleeping towns;
Below me drifts the shimmering light—
A glorious fresco on vale and downs;
My sea hath no billows nor rocky shores,
And only the winds disturb my soul;
I care not for those who slumber in death,
For my bomb is bloody and death my goal—
And all for the Vaterland!

Where the currents cross and the cruisers speed
I sail towards the North in a piteous sky;
I hear the night wind's surging note
As it mingles its requiem with the widow's cry.
Above me there streams a light from heaven,
But I bow my head and veil my eyes
As I plough the fields with my fateful keel

And sow the highways with tears and sighs—
And all for the Vaterland!

And hate is the banner I unfurl so wide
That its blood-dripp'd folds may catch the breeze;
That e'en from the balcony of heaven on high
May be seen this banner on all the seas.
No triumph of arms is my flight by night,
It is only a part of a murderous raid:
Dropping a bomb on an innocent child
Or a crowing babe in its cradle laid—
And all for the Vaterland!

For Thomas Walsh.

"SOCK IT TO 'EM"

"A Canadian lieutenant writes his mother from the front
that what he most needs for the winter is good warm
socks."—*Press Despatch.*

Yes, Wilhelm, sure you'll get it,
The storm is o'er your head;
It is bursting in the trenches
And you're just as good as dead.
You put your foot on Belgium
And defied your fate and doom,
And now the whole world hates you
And the cry is "Sock it to 'em!"

True, your Taubchens still are sailing,
But your battleships are not;

They are coop'd up in a corner
Save the submerg'd ones that fought.
You are saving time and fuel,
But you're sad and filled with gloom,
For the very winds are whispering
"Blow hard and sock it to 'em."

You have sought more spacious realm
In the free and genial sun:
Has your sceptre widened any
With the salvo of each gun?
Your "World-Power" seems to narrow,
And your hope lies in a tomb,
While dark Fate weaves your chaplet
And whispers "Sock it to 'em!"

For Theodore Botrel.

LANGEMARCK

A glory lights the skies of Flanders
Where the blood-stained fields lie bare,
Where the clouds of war have gathered,
Built their parapets in the air;
Halted stands the Teuton army,
Checked its onslaught at a sign;
Forward roll the warlike forces,
Sons of Canada in line.

Let them taste of Northern courage
Where the lordly maple grows;
Let them face the heroes nurtured
Where the stars have wed the snows;

We are sons of sires undaunted,
Children of the hills and plains;
Ours a courage born of duty,
Pluck and dash of many strains.

Tell it to our children's children
How Canadians saved the day;
Write it with the pen of history,
Sing it as a fireside lay;
How at Langemarck in Flanders,
Though the odds were eight to one,
Our Canadians stood unbroken,
Sword to sword, and gun to gun.

For Sir Wilfrid Laurier.

THE BUGLE CALL

Do you hear the call of our Mother,
From over the sea, from over the sea?
The call to her children, in every land;
To her sons on Afric's far-stretch'd veldt;
To her dark-skinned children on India's shore,
Whose souls are nourish'd on Aryan lore;
To her sons of the Northland where frosty stars
Glitter and shine like a helmet of Mars;
Do you hear the call of our Mother?

Do you hear the call of our Mother
From over the sea, from over the sea?
The call to Australia's legions strong,
That move with the might and stealth of a wave;
To the men of the camp and men of the field,

Whose courage has taught them never to yield;
To the men whose counsel has saved the State,
And thwarted the plans of impending fate;
Do you hear the call of our Mother?

Do you hear the call of our Mother
From over the sea, from over the sea?
To the little cot on the wind-swept hill;
To the lordly mansion in the city street;
To her sons who toil in the forest deep
Or bind the sheaves where the reapers reap;
To her children scattered far East and West;
To her sons who joy in her Freedom Blest;
Do you hear the call of our Mother?

For Major-General Sir Sam Hughes.

HIS MISSION

"A German will teach Irish at the University of Illinois, beginning in February, when Dr. Kuno E. Meyer of the University of Berlin will become visiting professor of the Celtic language and literature."—*Press Despatch.*

Go back, dear Kuno, to the Poles and Alsations,
And teach them the language your nation has robbed;
Piece out their dreams of new glory and freedom;
Bring joy to the hearts where the children have sobbed.
We love the old Celtic tongue, vibrant with music,
As it speaks to our hearts thro' the chords of long years,
But we don't want your lessons, though laden with "*Kultur*,"
From a land where Alsations and Poles are in tears.

Go back, Herr Professor, your mission is ended,
For, though your gifts are many, you are "*ausgespielt*";
Go back and receive your "Kreuz von Eisen,"
For we don't like the way that you're "*ausgebild't*."
The stars that burn with the true light of freedom,
In this giant new world, with its endless day,
Have nothing in common with your satellite planets,
And care not to shine on your Eagle's prey.

For Dr. Douglas Hyde.

ACHILLES' TOMB

Achilles awoke in his ancient tomb
Hard by the coast of Troy;
He rattled his armor now full of dust
And rubbed his eyes like a boy,
As he gazed on the ships of the allied fleet,
Ploughing the seas from afar,
Bent on their course to the Dardanelles
'Neath the light of Victory's star.

"Why, I've been asleep," Achilles said,
"On the windy plains of Troy;
Three thousand years have turned to dust
With their maddening mirth and joy;
Yet it seems but a day since Ilium fell,
Since Sinon spun out his tale,
And the Greeks returned from Tenedos
With a light and prosperous gale.

"Three thousand years is a long, long time,
But I'll doze for a thousand more;

For I'm sick of the bluff of the Teuton hosts
And the gas from each army corps.
So lay me down in my ancient tomb,
Where the Phrygian winds sweep by,
And I'll dream of the days when heroes fought,
'Round the lofty walls of Troy."

For Very Rev. W. R. Harris, D.D.

THE CHRISM OF KINGS

In the morn of the world, at the daybreak of time,
When Kingdoms were few and Empires unknown,
God searched for a Ruler to sceptre the land,
And gather the harvest from the seed He had sown.
He found a young Shepherd boy watching his flock
Where the mountains looked down on deep meadows of green;
He hailed the young Shepherd boy king of the land
And anointed his brow with a Chrism unseen.

He placed in his frail hands the sceptre of power,
And taught his young heart all the wisdom of love;
He gave him the vision of prophet and priest,
And dowered him with counsel and light from above.
But alas! came a day when the Shepherd forgot
And heaped on his realm all the woes that war brings,
And bartering his purple for the greed of his heart
He lost both the sceptre and Chrism of Kings.

For Miss Katherine Brégy.

TIPPERARY

(New version.)

I'm not going to Tipperary for I've better work to do,
I am dreaming of a new device to catch each German crew;
And when we've chased them thro' the deep, *Ach Gott!* what
 fun there'll be
Rounding up the Teuton "subs" in the blue and vasty sea.
 So, good-bye, Tipperary! Farewell, Slieve-na-mon!
 I leave you for a season to chase the murderous Hun;
 Von Tirpitz knows their hiding-place and I'll find out, too,
 So, good-bye, Tipperary, till we've caught each pirate crew.

Then I'll go to Tipperary with its hills of emerald green,
Where the skies are full of splendor and each peasant girl a queen;
Where the men know naught but honor and where duty is their goal;
Where the shadows from the mountains are but sunlight to the soul.
 So, good-bye, Tipperary, till we've rounded up each crew,
 Then I'll turn my face to greet you for to you I'll e'er be true;
 So I'm off to chase the pirates and the ocean aisles to sweep,
 Ach Himmel, Tipperary! there'll be fun upon the deep.

For Rev. J. B. Bollard.

GATHER THE HARVEST

Gather the harvest though reaped in death,
 Under the pale, pale moon;
For the lilies that joyed in the breath of morn
 Shall know not the ardor of noon:
So, the souls that grow strong, in patriot love,
 Shall be garnered on Death's dark field,

Ere the noontide rays have touched the vale
And burnished with gold life's shield.

Gather the harvest though reaped in death,
Where the sword has struck for Right,
And cleft a way for Freedom's path,
Through the dark and tremulous night:
For the golden grain on the altar flames
And lights each pilgrim throng,
As they meet in joy 'round that altar bright
Where Justice shall right each wrong.

For Miss Helen Merrill.

THE KAISER'S "PLACE IN THE SUN"

The Kaiser is seeking "a place in the Sun"
But I fear he'll have to wait,
Till another eclipse has dulled its face
And the Allies have woven his fate:
For the "spots" on the Sun are all occupied
With a race descended from Mars;
So there's no place in the heavens for *schrecklich* Wilhelm,
Not even among the Stars.

What boots it, Wilhelm, that your guns are big,
And your Zeppelins soar by night,
Since against you are leagued the earth and stars
And you're sure to lose in the fight.
You have drenched the world with heroic blood,
And stained the record of Man,
But you'll presently get your "place in the Sun,"
Yes, the hottest since time began,

For T. J. Murphy.

*** END OF THE PROJECT GUTENBERG EBOOK SONGS OF
HEROIC DAYS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.